

STATE OF NEW YORK

8727--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. JACKSON, KAY -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to directing the commissioner of education to conduct a survey of recess held in schools serving students in kindergarten through grade six

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. The commissioner of education is directed to conduct a
2 survey of recess held in public and charter schools serving students
3 from kindergarten through grade six, which shall include, but not be
4 limited to:
5 (a) information pertaining to the number of schools currently offering
6 recess;
7 (b) the length of such recess and how often it is provided;
8 (c) information pertaining to the location of such recess, including
9 whether such recess is held indoors or outdoors;
10 (d) if schools provide a dedicated space for such recess;
11 (e) if the school's recess is supervised or unsupervised;
12 (f) how many schools have a nurse on premises during the school day in
13 each school building;
14 (g) what the barriers are to providing recess; and
15 (h) if such recess is structured and if students are offered time for
16 unstructured play.
17 § 2. On or before March 1, 2026 or 180 days after this section shall
18 have become a law, whichever is later, the commissioner of education
19 shall provide the information from the survey to the governor, the
20 temporary president of the senate, the speaker of the assembly, the
21 senate minority leader, the assembly minority leader, and the chair-
22 persons and ranking members of the senate and assembly committees on
23 education. Such information shall also be released on the public website
24 of the New York state education department.
25 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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